

STATE OF NEW YORK

1100--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 8, 2025

Introduced by M. of A. BORES, BICHOTTE HERMELYN, CUNNINGHAM, RAGA, GONZALEZ-ROJAS, BURDICK, SIMONE, LEE, DE LOS SANTOS, MAGNARELLI, KELLES, HYNDMAN, EPSTEIN, SEAWRIGHT, DINOWITZ, GALLAGHER, GIBBS, SIMON, WEPRIN, CRUZ, GLICK, RAJKUMAR, DAVILA, TANNOUSIS, FORREST, R. CARROLL, RIVERA, TAYLOR, ZACCARO, ROSENTHAL, FALL, DAIS, JACKSON, REILLY, REYES, PIROZZOLO, ALVAREZ, BENEDETTO, SEPTIMO, SHIMSKY, BERGER, ROZIC, MAMDANI, SAYEGH, LEVENBERG, STIRPE, ZINERMAN, SHRESTHA, STECK, LASHER, WRIGHT, ROMERO, BARRETT, TORRES, TAPIA, LUNSFORD -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

CONCURRENT RESOLUTION OF THE SENATE AND ASSEMBLY

proposing amendments to article 6 of the constitution, in relation to the number of supreme court justices in any judicial district

1 Section 1. Resolved (if the Senate concur), That subdivision d of
2 section 6 of article 6 of the constitution be amended to read as
3 follows:
4 d. The supreme court is continued. It shall consist of the number of
5 justices of the supreme court including the justices designated to the
6 appellate divisions of the supreme court, judges of the county court of
7 the counties of Bronx, Kings, Queens and Richmond and judges of the
8 court of general sessions of the county of New York authorized by law on
9 the thirty-first day of August next after the approval and ratification
10 of this amendment by the people, all of whom shall be justices of the
11 supreme court for the remainder of their terms. The legislature may
12 increase the number of justices of the supreme court in any judicial
13 district~~[, except that the number in any district shall not be increased~~
14 ~~to exceed one justice for fifty thousand, or fraction over thirty thou-~~
15 ~~sand, of the population thereof as shown by the last federal census or~~
16 ~~state enumeration]~~. The legislature may decrease the number of justices
17 of the supreme court in any judicial district, except that the number in

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 any district shall not be less than the number of justices of the
2 supreme court authorized by law on the effective date of this article.
3 § 2. Resolved (if the Senate concur), That the foregoing amendments be
4 submitted to the people for approval at the general election to be held
5 in the year 2026 in accordance with the provisions of the election law.